

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
JAVAN NATAL,

*Plaintiff,*

*- against-*

THE CITY OF NEW YORK,  
POLICE OFFICER FREDERIC ALLEYNE,  
POLICE OFFICER RYAN FOSTER, and  
SERGEANT JOSEPH GERGENTI,

*Defendant.*  
-----X

Index No.:

Date Filed:

Plaintiff designates  
Queens County  
as the place of trial

The basis of venue is  
GENERAL MUN LAW

### S U M M O N S

Plaintiff resides within the  
State of New York  
County of Queens

#### To the above name Defendant:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service of this summons, or within thirty (30) days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York

January 9, 2020

RICHARD J. KATZ, LLP

By: 

RICHARD J. KATZ

*Attorneys for the Plaintiff*

14 Wall Street, Suite 6B

New York, New York 10005

(212) 233-1515

#### Mailing Address

298 Garretson Avenue, 1<sup>st</sup> Floor  
Staten Island, New York 10305

To:

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

POLICE OFFICER FREDERIC ALLEYNE  
c/o NYPD 78<sup>th</sup> Precinct  
65 6th Avenue  
Brooklyn, New York 11217

POLICE OFFICER RYAN FOSTER  
c/o NYPD 112<sup>th</sup> Precinct  
68-40 Austin Street  
Forest Hills, NY 11375

SERGEANT JOSEPH GERGENTI  
c/o NYPD 112<sup>th</sup> Precinct  
68-40 Austin Street  
Forest Hills, NY 11375

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**VERIFIED  
COMPLAINT**

The plaintiff, Javan Natal, by his attorneys, Richard J. Katz, LLP, complaining of the defendants, upon information and belief, and at all times hereinafter mentioned, respectfully alleges:

**PRELIMINARY STATEMENT**

1. This is a civil rights action brought by the plaintiff JAVAN NATAL.
2. Plaintiff seeks relief from the defendants' violations his rights under New York State Constitution and the United States Constitution.
3. Plaintiff seeks relief from the defendants' violations of his Constitutional Rights, guaranteed by the Fourth Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and secured through 42 U.S.C. Section 1983 and Section 1985 and 1986.
4. The State law claims in this action include False Arrest; Unlawful Imprisonment, Abuse of Process; and Fabrication of Evidence.

5. The Federal law claims in this action include Violation of the Right to a Fair Trial and Fabrication of Evidence; False Arrest; Unlawful Imprisonment; and violations of the civil and Constitutional Rights of the plaintiff due to "deliberate indifference" of the City of New York to training, supervision and retention of Police Officers.

6. This action also has a Monell claim based upon the policy and/or custom of the City of New York that violated the civil and constitutional rights of the plaintiff (*see*, Monell v. Department of Soc. Svcs., 436 U.S. 658 (1978)).

7. The plaintiff, JAVAN NATAL, was subjected to False Arrest in violation of the 4<sup>th</sup> Amendment, by the individually named officers herein; evidence was fabricated against the plaintiff by the individually named officers in violation of both New York State law and in violation of his Due Process rights to a Fair Trial under the 6<sup>th</sup> and 14<sup>th</sup> Amendments of the United States Constitution and enforceable pursuant to 42 USC Section 1983.

8. The individually sued officers engaged in a conspiracy to cover-up their unlawful conduct, including submitting false reports to the prosecutors; and by custom and/or practice a failure to report and discipline the officers for their illegal and unconstitutional acts; the illegality involves violations of both New York civil laws which protect the community from unlawful police conduct and Constitutional rights enforced via the sections of 42 U.S.C. raised by Javan Natal.

9. The City of New York is liable under *respondeat superior* for the false arrest and other violations of New York State law; the City of New York is further liable for failing to properly train Police Officers, for failure to discipline Sergeants and Police Officers for presenting false information to prosecutors and for falsely swearing to statements submitted to the Court in this case and innumerable other cases; these false sworn statements are then submitted to the Court by the prosecutor.

10. The City of New York fails to prosecute or otherwise discipline the police officers and police department members who submit false information and then swear or otherwise affirm its truth and instead relies upon internal police department process that almost never results in prosecution for tendering false written statements to the prosecution and the Court.

11. In effect, the City of New York, by its custom or practice and/or by its policy condones the creation of an unconstitutional two tier system: a system in which the police are exempt from the penalties of the law which other citizens are required to obey under pain of conviction, jail, prison and in the case of a non-citizen collateral consequences such as removal from the United States, deportation and loss of opportunity.

12. The City of New York fails to discharge officers with a history of misconduct including making false arrests of persons including the plaintiff; the City of New York permits officers with a history of misconduct including making false statements to prosecutors to remain in contact with the public; and the City of New York continues to retain officers with a history of misconduct including the individually named officers who were involved in the arrest and prosecution of Javan Natal.

13. Under the Federal causes of action, plaintiff, JAVAN NATAL, seeks declaratory relief pursuant to 28 U.S.C. Sec. 2201, compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C. Sections 1985 and 1986 and an award of costs, disbursements and attorney fees under 42 U.S.C. Sec. 1988.

14. For the New York State causes of action, plaintiff, JAVAN NATAL, seeks compensation in an amount in the amount in excess of the jurisdictional limitations of all lower courts.

### **INTRODUCTION**

15. Plaintiff, JAVAN NATAL, resided and still resides within the County of Queens,

City and State of New York.

16. On the January 31, 2018, and within ninety (90) days of the date of occurrence herein, the plaintiff served upon the office of the Comptroller of the City of New York, his Notice of Claim setting forth the time when, the place where, and the manner in which the claim arose.

17. More than thirty (30) days have elapsed since the presentation of said claims and no adjustment or payment has been made or offered by the defendant, THE CITY OF NEW YORK.

18. After plaintiff's initial request for an adjournment, no further request for a hearing pursuant to Section 50-H of the General Municipal Law has been made by the defendant, THE CITY OF NEW YORK.

19. This action is being commenced within the time permitted by law.

20. Defendant, THE CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York and was the employer of the defendant officers; the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation, policy and/or at the direction of the defendant City of New York.

21. The City of New York is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by NYPD.

22. At all times relevant, defendant, THE CITY OF NEW YORK, employed the defendant, POLICE OFFICER FREDERIC ALLEYNE.

23. At all times relevant, defendant, THE CITY OF NEW YORK, employed the

defendant, POLICE OFFICER RYAN FOSTER.

24. At all times relevant, defendant, THE CITY OF NEW YORK, employed the defendant, SERGEANT JOSEPH GERGENTI.

25. At all times herein, the individual defendants were acting under the color of their official capacity, and their acts were performed under the color of law.

26. At all times herein, the individual defendants were/are the servants, agents, and employees of their co-defendant the CITY OF NEW YORK.

27. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK.

28. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

29. Defendant, POLICE OFFICER FREDERIC ALLEYNE, is sued in his individual and official capacity.

30. Defendant, POLICE OFFICER RYAN FOSTER, is sued in his individual and official capacity.

31. Defendant, SERGEANT JOSEPH GERGENTI, is sued in his individual and official capacity.

### **FACTS**

32. The incidents complained of took place on and after November 18, 2017 at approximately 2:00 PM at or near the intersection of Queens Boulevard and Elliot Avenue, Queens, New York continuing at the 112th Police precinct 68-40 Austin Street, Queens, New York and then Queens Central Booking, 125-01 Queens Boulevard, Queens New York, and

Queens Criminal Court.

33. At all times relevant herein, the plaintiff, JAVAN NATAL, was arrested, handcuffed and imprisoned, all without just or probable cause by members of the New York City Police Department.

34. Plaintiff was purportedly arrested for harassment.

35. In actuality, the plaintiff was the victim of road rage by defendant, POLICE OFFICER FREDERIC ALLEYNE, who at the time of the incidents complained of, was an off-duty member of the New York City Police Department who threatened the plaintiff while driving a vehicle, by driving aggressively, by cutting off the plaintiff's vehicle, by "brake-checking" the plaintiff's vehicle, and by brandished his service weapon to the plaintiff to threaten him and cause plaintiff to fear for his life.

36. The defendant, POLICE OFFICER FREDERIC ALLEYNE, was the aggressor and true perpetrator, and had nothing to fear from the plaintiff.

37. The plaintiff, JAVAN NATAL, committed no crime and was only arrested by defendant, POLICE OFFICER RYAN FOSTER, on the word of co-defendant, POLICE OFFICER FREDERIC ALLEYEN, to cover-up, hide, conceal, or otherwise protect from disclosure that officer's own crimes and misdeeds.

38. The defendant, CITY OF NEW YORK, by its agents, defendant, POLICE OFFICER RYAN FOSTER and SERGEANT JOSEPH GERGENTI, arrested plaintiff for, and charged him with harassment without any proof, much less reasonable cause.

39. That defendants, CITY OF NEW YORK, POLICE OFFICER RYAN FOSTER, SERGEANT JOSEPH GERGETI, conducted no investigation to confirm if a crime had been committed by plaintiff.

40. In fact, the defendants compounded their error by failing to investigate the 911



calls and radio transmissions which confirm that plaintiff was the victim.

41. The defendants, CITY OF NEW YORK, POLICE OFFICER FREDERIC ALLEYEN, POLICE OFFICER RYAN FOSTER, and SERGEANT JOSEPH GERGETI filed a false document or documents in connection with the arrest in order justify the arrest.

42. Plaintiff was handcuffed and brought to the 112th precinct.

43. Plaintiff was also taken to Central Booking in Queens, New York and then released after arraignment.

44. Even in the face of proof that plaintiff was a victim and committed no crime, the defendants continued to prosecute plaintiffs by dragging the matter out through the Courts for two (2) years.

45. Upon information and belief, the defendants did nothing - took no action - to verify or refute whether the plaintiff committed any crime. This conduct constitutes an abuse of process.

46. This incident resulted in severe personal and permanent injuries and damages to said plaintiffs as set forth herein below as a result of the negligent, gross negligent, intentional, careless, and reckless conduct of the defendants, CITY OF NEW YORK, POLICE OFFICER FREDERIC ALLEYEN, POLICE OFFICER RYAN FOSTER, and SERGEANT JOSEPH GERGETI and those acting under their direction, behest, permission and control as set forth above and in the general operation, supervision, governance, and maintenance of the respective police departments, including, but not limited to the following acts and omissions: failure to properly supervise, failure to properly screen and hire, failure to discipline, train and retrain, failure to maintain an effective system of discipline and retraining for police officers, intentional and negligent infliction of emotional harm, negligent hiring and retention, negligent supervision and training, false arrest, abuse of process, and violation of State and Federal civil and

Constitutional rights.

47. The Criminal Court Complaint, Supporting Deposition, Accusatory Instruments, Arrest records was signed and sworn to by defendants, POLICE OFFICER FREDERIC ALLEYEN, POLICE OFFICER RYAN FOSTER, and SERGEANT JOSEPH GERGETI, states "False statements in this written instrument are punishable as a class "A" misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes."

48. Criminal proceedings were terminated on November 18, 2019.

49. There was no probable cause to arrest or commence criminal proceedings against JAVAN NATAL.

50. The criminal proceedings against JAVAN NATAL were commenced with malice.

51. Defendant, CITY OF NEW YORK, failed to properly train its police officers failed to discipline; and, failed to terminate or remove from public contact police officers who it knew, or should have known, were not fit to be police officers; this is part of a long standing policy by the CITY OF NEW YORK which is partly due to its contract with the Policeman's Benevolent Association that the CITY OF NEW YORK permits to control such things as retention of employees who have been found to have Constitutional and State laws prohibiting creation of false narratives and creating false paperwork to justify illegal arrests.

52. As a result of the foregoing the injuries suffered by plaintiff include serious injury, humiliation, embarrassment, anxiety, and pain, loss of freedom and, violation of his rights under the US Constitution, New York Constitution, and civil rights laws of the City and State of New York.

53. Defendants knew or should have known that there was no lawful basis for seizing the person of the plaintiff and handcuffing and otherwise depriving the plaintiff of his rights to due process and fair trial as protected by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

54. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff, JAVAN NATAL.

55. As a result of the conduct aforesaid, these defendants individually deprived the plaintiff, JAVAN NATAL, of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the 4<sup>th</sup> and 14<sup>th</sup> Amendments.

56. As a result of the afore-described actions, the defendant by and through the individually named officers deprived plaintiff JAVAN NATAL, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments to the United States Constitution.

57. The unlawful arrest and use of excessive force of the plaintiff violated his rights under the 4<sup>th</sup>, 5<sup>th</sup>, 6<sup>th</sup> and 14<sup>th</sup> Amendments to the United States Constitution.

58. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

59. Defendant, CITY OF NEW YORK, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of plaintiff and others similarly situated.

60. The individual police officers who arrested plaintiff conspired with each other to engage in the unlawful conduct including the unlawful stop of plaintiff and the falsification of evidence and cover up all in violation of the plaintiff JAVAN NATAL'S rights under the 4<sup>th</sup>, 5<sup>th</sup>, 6<sup>th</sup> and 14<sup>th</sup> Amendments to the Constitution of the United States.

61. The individual police officers who arrested plaintiff had actual knowledge of the conspiracy to deprive persons at the aforementioned premises of their rights under the Constitution and each neglected and failed to prevent the interference with plaintiff's civil rights.

62. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C. sections 1983 and 1985 and 1986.

63. The aforesaid acts of the defendants were intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

**AS AND FOR A FIRST CAUSE OF ACTION  
AGAINST THE DEFENDANT, CITY OF NEW YORK  
FOR FALSE ARREST UNDER THE LAWS OF THE STATE OF NEW YORK**

64. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "60" above as if fully set forth herein.

65. On November 18, 2017, while plaintiff, JAVAN NATAL, was lawfully at the intersection of Queens Boulevard and Elliot Avenue, Queens, New York, and at other times and locations, during the period she was in police custody, in the County of Queens, City and State of New York, he was unlawfully subjected to an unlawful search and seizure by police officers who were employees, agents and/or servants of defendant, CITY OF NEW YORK.

66. That said unlawful detention and search and seizure was without justification and beyond the boundaries of reasonableness.

67. That Defendant, CITY OF NEW YORK, through its police officer agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid detention, search and unlawful imprisonment of plaintiff.

68. That at the time of his unlawful imprisonment, plaintiff had not committed any illegal act.

69. That at the time of his unlawful imprisonment, plaintiff had not committed or attempted to commit any crime.

70. That there was no reasonable cause to subject plaintiff to arrest.

71. That at the time of Plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

72. On the aforesaid date and place, the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined the plaintiff JAVAN NATAL and/or restricted JAVAN NATAL's freedom of movement.

73. Plaintiff, JAVAN NATAL, was conscious of said confinement and/or restriction.

74. Plaintiff, JAVAN NATAL, did not consent to said confinement and/or restriction.

75. The confinement and/or constriction was not otherwise privileged.

76. By the conduct aforesaid, the defendant, THE CITY OF NEW YORK caused JAVAN NATAL to be falsely imprisoned, falsely arrested, without probable cause, illegally and without an arrest warrant.

77. That said false imprisonment caused plaintiff to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages and damage to his reputation.

78. As a result of the foregoing, plaintiff JAVAN NATAL, demands judgment against the defendant, CITY OF NEW YORK, in a sum of money which exceeds the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION  
AGAINST DEFENDANTS - POLICE OFFICER FREDERIC ALLEYNE,  
POLICE OFFICER RYAN FOSTER, AND SERGEANT JOSEPH GERGETI -  
ALL INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITIES  
AS MEMBERS OF THE NEW YORK CITY POLICE DEPARTMENT  
UNDER 42 U.S.C. SECTION 1983**

79. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "76" above as if fully set forth herein.

80. The conduct of the individually named defendant officers as described herein, amounted to false arrest, excessive use of force, failure to intervene, fabrication of evidence and violation of due process rights.

81. Such conduct violated plaintiff's rights under 42 U.S.C. Section 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

82. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

83. As a result of the foregoing, plaintiff JAVAN NATAL, demands judgment against the defendant, CITY OF NEW YORK, in a sum of money which exceeds the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION  
AGAINST THE DEFENDANT, CITY OF NEW YORK  
UNDER 42 U.S.C. SECTION 1983**

84. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "81" above as if fully set forth herein.

85. Defendant THE CITY OF NEW YORK, acting through the New York City Police Department, had actual and/or *de facto* policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligations to effect an arrest only when probable cause exists for such arrest.

86. Defendant THE CITY OF NEW YORK, acting through the aforesaid NYPD, had actual and/or *de facto* policies, practices, customs and/or usages of wrongfully arresting, assaulting and or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is Hispanic, on the pretext that they were involved in some crime or offense.

87. The existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of New York in the state and federal courts.

88. The Defendant THE CITY OF NEW YORK maintained the above described policies, practices, customs and/or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant THE CITY OF NEW YORK acted with deliberate indifference, and its failure was a direct and proximate cause of Plaintiff's injuries as described herein.

89. By these actions, defendants have deprived the Plaintiff of rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as secured through 42 U.S.C. Section 1983.

90. As a result of the foregoing, plaintiff JAVAN NATAL, demands judgment against the defendant, CITY OF NEW YORK, in a sum of money which exceeds the jurisdictional limits of all lower Courts

**AS AND FOR A FOURTH CAUSE OF ACTION  
AGAINST DEFENDANTS POLICE OFFICER FREDERIC ALLEYNE,  
POLICE OFFICER RYAN FOSTER, AND SERGEANT JOSEPH GERGETI,  
ALL INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITIES  
AS MEMBERS OF THE NEW YORK CITY POLICE DEPARTMENT  
UNDER 42 U.S.C. SECTIONS 1985 & 1986**

91. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "88" above as if fully set forth herein.

92. In an effort to find fault to use against plaintiff, defendants conspired among themselves and conspired with other individuals to deprive plaintiff of his Constitutional rights secured by U.S.C. Section 1983 and by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy as set forth above.

93. Therefore, defendants engaged in a conspiracy designed to deprive plaintiff of isConstitutional and federal rights in violation of 42 U.S.C. Section 1985.

94. As a direct and proximate result of the misconduct and abuse of authority detailed above, the plaintiff sustained the damages enumerated above.

95. As a result of the foregoing, plaintiff JAVAN NATAL, demands judgment against the defendant, CITY OF NEW YORK, in a sum of money which exceeds the jurisdictional limits of all lower Courts



**WHEREFORE**, the plaintiff demands judgment against the defendants in an amount to be determined by the trier of facts; punitive damages against the individually named defendants under the Fourth and Sixth causes of action; attorney fees as provided under 42 U.S.C. Section 1988; together with costs and disbursement and interest from the 18<sup>th</sup> day of November, 2017; as well as such other and further relief as this Court may deem just, proper, and equitable.

Dated: New York, NY  
January 9, 2020

  
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RICHARD J KATZ

ATTORNEY VERIFICATION

Richard J. Katz, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am attorney for the plaintiff(s) in the within action. I have read the foregoing Complaint and know the contents thereof, and upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by affirmant and not by the plaintiff(s) is that the plaintiff(s) herein are not currently in the County in which plaintiff(s) attorneys maintain their office.

The source of affirmant's information and the grounds for his belief are communications, papers, reports and investigations contained in plaintiff(s) attorney's file.

Dated: New York, New York  
January 9, 2020



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RICHARD J. KATZ